

Review Article

Rosario López, *Contexts of John Stuart Mill's Liberalism – Politics and the Science of Society in Victorian Britain* (Nomos: Baden-Baden, 2016), 201 pages.

I: Methodological setting and general impression

This book, hereafter referred to as *Contexts*, is the fourth volume in the series *Politics-Debates-Concepts* by Nomos. The series publishes interdisciplinary studies of politics with a focus on the history of political concepts, conceptual change, and the interplay between ‘political theories and political practices’. Lopez’s work squares perfectly within this setting. In line with her intellectual forerunners, Reinhardt Koselleck, Quentin Skinner and Kari Palonen, she locates basic political concepts in speech-acts directed at prevalent social and political issues. The influence of the school labelled the ‘Study of intellectual thought’ is evident in this passage:

The study of the uses of concepts and argumentative strategies in Mill’s writings contributes to a richer understanding of the history of political thoughts, more precisely of political liberalism as a context-dependent historical narrative (*Contexts*, p. 13).¹

López treats with a considerably degree of suspicion the idea that there is a canon of basic political concepts and issues that the authors of historically influential texts address. She presents Mill’s liberalism without a search for the true or real meaning of his key-notions; rather she studies, by a multifarious investigation, the various roles they play in Mill’s writings. Now, anybody with the slightest familiarity with Mill’s public life and writings realizes that he stands out as a prime candidate for such a research. Mill took part in the public life in Victorian Britain in numerous ways, and his writings always aim at influencing politics, both in the short and the long run. Mill was self-conscious of his impact on pressing social and political issues, something that no doubt had an effect on his

¹ Of course, ‘political liberalism’ is not used in the prevalent sense inherited from Rawls.

style of writing and ways of arguing.² This is one of the major reasons why, in order to come to grips with Mill's liberalism, one needs to investigate sources of great variety. These include his writings on social philosophy, political philosophy (including reflections on constitutions and representative government), economy and logic (in a broad sense, including scientific methodology, a use of "logic" typically for the time), entries in journals and newspapers and public speeches. However, the prevalent tendency among contemporary scholars, philosophers, looking for clear-cut arguments, in particular, is to focus exclusively on certain selected passages or works in Mill's huge corpus. One analyses, for instance – to add two examples to those analysed by López – the so-called harm-principles of *On Liberty* in isolation from its wider context, or one studies *Utilitarianism*, taking Jeremy Bentham's classical utilitarianism to provide the solely needed intellectual background. (I mention these cases, as I will return to them towards the end.) López demonstrates beyond reasonable doubt that such an approach towards any of Mill's writings is destined to end up as a caricature of his viewpoints, or miss the target altogether.

López presents a comprehensive, complex and fascinating liberalism with many facets, an impressive achievement within the scope of just about 200 pages. To me, a philosopher by training, a great value of the book is that it provides a coherent, fascinating framework for a detailed study of selected and difficult passages in Mill's writings. Hereafter, I will approach the details of Mill's arguments against the background spelled out in *Contexts*. This is indeed a rewarding study. It is worth a close reading by scholars and students of Mill alike, but also more generally, by those who have an interest in the origins of liberalism and the intellectual atmosphere of Victorian Britain. I hope it will be widely read.

Contexts is a refined version of Rósalez's PhD-thesis.³ It contains nine chapters, some of them have been published separately, but are here modified to the format of a coherent monograph. The

² Cf. Rawls, John, R. *Lectures on the History of Political Philosophy*, Samuel Freeman (ed.) (Cambridge, Mass: The Belknap Press, 2007), pp. 251–53.

³ *Concepts and Historical Contexts in Liberalism's Intellectual Debates: A Study of John Stuart Mill's Moral and Political Thought* (University of Málaga, Department of Philosophy, 2013). The thesis was awarded the 2013

overall impression is that the format of more or less self-standing chapters fits the complexity of Mill's liberalism and the methodology of the Study of intellectual thought, as the same themes often reoccur, but from different angles and within different argumentative settings. This throw further light upon, and deepens the addressed points. Sometimes, however, there are superfluous and distractive repetitions, as when almost identical passages occur in subsequent chapters (see for instance *Contexts*, p. 52 and 63).⁴

I will give more or less detailed comments to the chapters and also draw some lines of connections. I single out what I find most valuable, but another reader might well approach this rich text otherwise.⁵

II: Topics

In Chapter 1, 'Introduction: Approaching John Stuart Mill's Political Thought', the author maintains that her work 'offers a novel reading of some aspects of Mill's political thought that both casts light on frequently disregarded topics and revises prevailing interpretations in contemporary academic literature' (*Contexts*, p. 13). A basic aim of *Contexts* is to

Depict Mill as an eclectic thinker whose writings take root in a variety of philosophical traditions that appear consequently weaved together. Mill himself takes pride in his 'many-sidedness' referring to his ability to 'building bridges and cleaning the paths' that connected two rival schools of thought. Commentators like James Fitzjames Stephen, Getrude Himmelfarb and Isaiah Berlin have regarded this heterogeneity as justifying the charge of incoherency, ultimately postulating the existence of 'two Mills' each with a different and mutually incompatible message (*Contexts*, p. 22).

Luis Díez del Corral Prize for the Best Dissertation in the History of Ideas, Normative Political Theory, and Political Philosophy by the Centre for Political and Constitutional Studies (*Centro de Estudios Políticos y Constitucionales*), Madrid, and the 2013/14 Doctorate Extraordinary Award, Doctoral Programme *Advanced Studies in the Humanities*, University of Málaga.

⁴ A particularly unfortunate consequence of the formatting process from the thesis to *Contexts* needs to be mentioned. In the detailed (and highly informative) discussion of the different editions of a focused passage in *A System of Logic*, the needed italics are gone, so the remark that 'rewritings and additions in italics' (*Contexts*, p. 161, n. 145) gives no meaning. (The italicized passages can be found in the PhD-thesis, p. 171.) This makes the passage and the subsequent analysis hard to follow.

⁵ Due to limits of space, I have left out one highly illuminative topic, namely the impact of British and French philosophers and historians on Mill's thinking. As López forcefully argues, Mill searched out deep insights from contemporary authors defending radically different, or even opposing, positions. No doubt, this is an aspect of the originality of Mill's liberalism.

The author immediately states that she will not engage ‘directly in this debate’. As argued towards the end, I find it somewhat disappointing that she is unwilling to face *the* fundamental issue in the reception of Mill: Is he a confused thinker, or is *On Liberty* a work that squares with *Utilitarianism*? In my mind, López’s instructive account of Mill’s ‘many-sidedness’ provides the means to a sharp and clear-cut respond to the widespread charge of an unresolved conflict between *On Liberty* and *Utilitarianism*. The author works out the weapons needed for rejecting such misconceived readings, and I wish that she had used them.⁶

The point of Chapter 2 “‘The Collision of Adverse Opinions’: The many Faces of Antagonism’ is to spell out the depth of Mill’s premise that we gain insights from all forms of antagonism. López states that

The clash between divergent standpoints and different sets of values has in Mill’s writings an all-persuasive importance as regards society and politics. I agree with Nadia Urbinati that Mill scholars ‘overemphasize his moral philosophy and gives his thought an antipolitical twist’ (*Contexts*, p. 31).

I also agree with Urbinati. However, as maintained in part III, Mill’s moral philosophy should be read in light of the comprehensive historically oriented liberalism spelled out by López. Thus, it is not the focus on Mill’s moral philosophy as such that is a problem, but the way it tends to be isolated from the rest of his philosophy.

López unfolds Mill’s understanding of antagonism as a driving force in the history of civilization, as a force towards considered political decisions at all levels, and in the development of Mill’s own thinking, exemplified through his attempts at taking the best out of the conservative Samuel T. Coleridge and the radical Bentham. ‘Antagonism is not only a descriptive tool, which helps

⁶ It might be that her unwillingness to enter this debate is due to the descriptive tendency of the Study of intellectual thought. However, in case one does not rule out that Mill is fundamentally confused, he is less worthy a broad and serious study. (Of course, by this I do not mean that Mill is not confused from time to time, we all are, but one should rule out the possibility of an inconsistency at the very bones of his theory.) This question of interpretation, involving the principle of charity, differs fundamentally from the question whether Mill is persuasive or not, or even stronger, whether he is right or wrong.

explain Europe's success [...] but also has a normative value: antagonism aims for good decisions that promotes common interests' (*Contexts*, p. 35). The author maintains that Mill is influenced by Coleridge's view that the 'state consist in the interplay of "two antagonist powers or opposite interests" [...] whose goals are mutually exclusive: the "interest of permanence" [...] and the "interest of progression" [...]"' (*Contexts*, p. 34). As we shall see, this pair of notions, that of permanence and progress (or more generally, that of order and progress), play a key-role in Lopez understanding of Mill's liberalism.

A major aim of the third chapter 'History, progress, and the Study of Society' is to formulate a fundamental premise behind Mill's writings, underestimated among scholars, namely that political philosophy presupposes a philosophy of history. Despite the fact that Clark W. Bouton in 1965 argued that Mill's liberalism is understandable only against the background of his philosophy of history, this insight has not gained widespread support.⁷ The author fully demonstrates that Bouton was right, and after this work, no scholar are justified in neglecting the centrality of the philosophy of history in Mill's works. The two fundamental terms in Mill's philosophy of history and political philosophy are those of 'order' and 'progress' – and their numerous variations, as recorded by López. The history of civilization, the current state of society in Britain and the rest of the world, as well as politics on all levels, must be understood and analysed in light of these interdependent notions. To Mill, they have a descriptive, scientific status as well as a normative value: they provide the means for a scientific study of the past, the present and the future *and* one should always strive for a balance between them: Keep what is best, and progress further; otherwise, a civilization or a society is doomed to stagnation.

The by far most intriguing discussion in this chapter is that of Mill's scientific programme of studying society and the development of civilisation by way of the Inverse Deductive or Historical

⁷ 'John Stuart Mill: On Liberty and History', *Political Research Quartely*, 18, 3 (1965), pp. 569–78. The article is reprinted in Smith, G. W. (ed.) *John Stuart Mill's Social and Political Thought*, Vol. II (London and New York: Routledge, 1998), pp. 377–388.

Method. López is right in singling out *A System of Logic*, Book 6, as a key-work in Mill's corpus, but it appears to me that she does not fully grasp its role in Mill's liberalism. This point is crucial, as Mill's philosophy of history (I fully agree that it is a key to reading Mill) is based on the analysis made there. A larger part of this review is therefore devoted to this topic. López states that 'By arguing for a methodology that enables a scientific study of society, [Mill] establishes a direct link between the unfolding of history and political science, that is, a link between the past and the future' (*Contexts*, p. 55). I agree that there is a link between Mill's reflections on the methodology of the social sciences and politics, but it is not as direct as argued by López. Mill's methodological reflections are complex indeed, not the least since they are based on the principle of 'the Composition of Causes'. In general, this principle, well known from biology, means that one's research topic involves a multitude of causes that have a reciprocal influence on each other. The study of the transition from one state of society or civilization to another involves causes of the nature of man and of his environment. Mill objects to the idea that society can be studied as a self-subsistent subject with its own laws, as well as to the idea that a society can be approached as an aggregate of the actions of individuals. The attempts to single out one set of laws, common to Mill's forerunners and contemporaries, overlook the complex interplay of causes.⁸ He maintains, as observed by López, that it is the great achievement of Auguste Comte to have formulated the correct principles for the scientific study of historical change and progress. López cites Mill's strong claim that 'Philosophy of History is generally admitted to be at once the verification, and the initial form of the philosophy of the Progress of society' (*Contexts*, p. 56). She then makes an assertion that I find it hard to follow:

Thus, the crucial question remains whether progress means general social improvement. Mill confidently asserts that 'progress and progressiveness' are not synonymous with 'improvement or tendency to improvement', or to be precise, society is not bound to improve [...] While rejecting historical determinism, he endorses the value of individual freedom (*Contexts*, p. 56).

⁸ Cf. Robson, J.M., (ed.) *Collected Work of John Stuart Mill*, Volume 8, *A System of Logic* (Toronto: University of Toronto press, 1974), p. 913. (Hereafter, this work is referred to as 'CW, 8'.)

The term 'historical determinism' might mean different things. According to the orthodox versions of Marxian historical materialism, societies moves toward a certain predescribed state.⁹ Mill rejects such a premise as unscientific:

It is my belief indeed that the general tendency is, and will continue to be, saving occasional and temporary exceptions, one of improvement; a tendency towards a better and happier state. This, however, is not a question of the method of the social science, but a theorem of the science itself.¹⁰

Evidently, Mill distinguishes sharply between his own (strong and confident) beliefs and scientific verification. The methodology of the social sciences must be based on the notions of order and progress, but it does not allow an additional assumption about the consequences of progress. If there is a general tendency towards improvement, then this consequence must be verified by science itself. Even though Mill strongly believes history, understood as a question of order and progress, tends towards improvement, this belief is not itself a scientific theorem or an ultimate truth. Immediately before this passage, Mill observes that 'It is conceivable that the laws of human nature might determine, and even necessitate, a certain series of changes in man and society, which might not in every case, or which might not on the whole, be improvements'.¹¹ Accordingly, there is

⁹ The famous introduction to *A Contribution to the Critique of Political Economy* (*Zur Kritik der politischen Ökonomie*) was published the very same year as *On Liberty* (1859). Both Mill and Marx reflect on the methodology of the social sciences, and they argue that the scientific goal, here as elsewhere, is *explanation* and *prediction*. A comparative study of Marx's and Mill's understanding of the philosophy of history and its influence on the methodology of the social sciences would be illuminative from the context of both the history of ideas and the philosophy of the social sciences. Such a study would display further the depth of Mill's liberalism.

¹⁰ *CW*, 8, pp. 913–914. In the first two editions of *A System of Logic* (1843 and 1846), Mill uses the phrase 'ultimate result' rather than the term 'theorem'. At another occasion in *A System of Logic*, he writes 'ultimate truths' (cf. *CW*, 8, p. 789). Since the topic is deductions, it is clear that 'theorem' is used the classical sense, meaning truths derived from more fundamental truths.

¹¹ Mill argues that any argument to the effect that progress means improvement is a case of the fallacy of generalization:

'[A]ll generalizations which affirm that mankind have a tendency to grow better or worse, richer or poorer, more cultivated or more barbarous, that population increases faster than subsistence, or subsistence faster than population, that inequality of fortune has a tendency to increase or to break down, and the like, propositions of considerable value as empirical laws within certain (but generally narrow) limits, are in reality true or false according to times and circumstances' (*CW*, 8, p. 791).

nothing in these passages that involves a denial of historical determinism as such. Mill is, however, utterly aware of the complexity of predicting the future states of society:

All phenomena of society are phenomena of human nature generated by the action of outwards circumstances upon masses of human beings: and if, therefore, the phenomena of human thought, feeling, and action, are subjects to fixed laws, the phenomena of society cannot but conform to fixed laws, the consequences of the preceding. There is, indeed, no hope that these laws, though our knowledge of them were as certain and as complete as it is in astronomy, would enable us to predict the history of society, like that of the celestial appearances, for thousands of year to come. But the difference of certainty is not in the laws themselves, it is in the data to which these laws are to be applied.¹²

In the sense of the term invoked here, it seems clear that Mill takes the development of society from one stage to the next to be determined, and therefore the future states to be *in principle* predictable, albeit the development is far too complex to be captured by the ideal scientific methods.¹³ This is the reason why, throughout *A System of Logic*, Book 6, Mill compares the methodology of the social sciences with that of astronomy. In opposition to López, I do not take the fact that the social sciences cannot predict the future states of society to be an argument or objection against determinism. López's further discussion confirms our different reading of Mill's understanding of the social sciences:

The progress of society, when it takes place, results from mankind's actions, which suggests that Mill's later defense of liberty fits in with his theory of history [...] Thus, every human action can be explained appealing to the state of society or the 'general circumstances of the country', yet it also depends on 'influences special to the individual', or free will (*Contexts*, p. 56).

¹² *CW*, 8, p. 877. This remark makes clear why Mill introduces into the science of society (Baconian) middle axioms and empirical laws; and ends up with the Inverse Deductive, or Historical Method.

¹³ Cf. *CW*, 8, p. 791, where Mill talks about the unobtainable 'real *law* of the future' (*Italics original*).

I find everything that López says here to be in accordance with Mill, with the exception of interpreting the phrase ‘influences special to the individual’ as free will. By ‘later defense of liberty’ I assume that López thinks of the subject-matter of *On Liberty*. However, its opening passage goes like this: ‘The subject of this Essay is not the so-called Liberty of the Will [...] but Civil, or Social Liberty, the nature and limits of the power which can be legitimately exercised by society over the individual’.¹⁴ It appears to me that López conflates *individuality* (a basic notion of Mill’s Liberalism, both in the scientific and normative sense) and *free will*, a topic in the philosophy of mind and action.¹⁵ The ‘influences special to the individual’ that Mill talks about when he spells out the methodology of the Social Sciences are law-bounded. He mentions such aspects as ‘his temperament, and other peculiarities of organization, his parentage, habitual associations, temptations, and so forth’.¹⁶ These are, as we have seen, necessary to study in the social sciences.¹⁷ To conclude thus far: López is right in stating that the philosophy of history, understood as the transition from one state of the society to the next is the focal point of Mill’s liberalism. A historical approach underlies Mill’s discussion of liberty, morality and government; in short, his liberalism must be understood in this light. She appears, however, not to draw the distinction between Mill’s description of the methodology of the social sciences and his normative reflections sharply enough. *On Liberty*, *Considerations on Representative Government* and *Utilitarianism* are normative works, or reflections that belong to the Art of Life, not scientific ones. (None of these works are based on the Inverse Deductive, or Historical Method.) We shall return to this topic when we discuss Chapter 7.

¹⁴ Robson, J. M. (ed). *Collected Works of John Stuart Mill*, Volume 18, *Essays on politics and Society* (Toronto: University of Toronto Press, 1977), p. 217.

¹⁵ Concerning individuality and the Composition of Causes: ‘The laws of the phenomena of society are, and can be, nothing but the laws of the actions and passions of human beings united together in the social state. Men, however, in a state of society, are still men; their actions and passions are obedient to the laws of individual human nature. Men are not, when brought together, converted into another kind of substance, with different properties; as hydrogen and oxygen are different from water [...] human beings in society have no properties but those which are derived from, and may be resolved into, the laws of the nature of individual man. In social phenomena the Composition of Causes is the universal law’ (CW, 8, p. 879).

¹⁶ CW, 8, p. 933.

¹⁷ For Mill’s empiricist account of the notion of free will, cf. *A System of Logic* Book 6, Chapter II: Of Liberty and Necessity (CW, 8, pp. 836–843).

The scope and significance of the interconnected notions of order and progress is the topic of Chapter 4 'The principles of Order and progress in Mill's Social and Political Thought' and Chapter 5 'The Argumentative Usages of Order and progress: Social and Political Debates in Newspapers, Pamphlets and the Writings of Victorian Intellectuals (c. 1840–1899)'. In the fourth chapter, the author detects the centrality of the pair of notions in a number of basic works of Mill, among them *A System of Logic*, *The Principles of Political Economy*, *On Liberty* and *Considerations on Representative Government*. In the subsequent chapter, she expands the context, and shows through a detailed study of the political writings of contemporary Victorian intellectuals and various political debates in newspapers and pamphlets, that the distinction was well known and in common usage. This impressive detective work is valuable, indeed, as it provides the deeper significance of this pair of concepts in the hands of Mill. From now on, upon encountering these notions, we are in a better position to appreciate their significance and philosophical objective.

Chapter 6 'A System of Logic as a Palimpsest: The relationship between J. S. Mill and A. Comte in the Light of Textual revisions' contains an enlightening analysis of Mill's complex and changing relationship to August Comte, the great French positivist. Her major tool is an original study of the many revisions of *A System of Logic*. Again, the author demonstrates that the works of Mill must be interpreted by way of contextual means, and cannot be read as autonomous, self-standing texts. The numerous textual revisions of *A System of Logic* displays subtle changes in Mill's opinion of Comte, and thereby a development of his philosophy of science and politics, that cannot be read out of any of the editions, including the final one, by themselves.

Chapter 7 'Natural Imaginary and Metaphors in Mill's Science of Society' contains both a discussion about Mill's repeated invocation of notions from the natural sciences in his political philosophy, and some reflections belonging to the theory of metaphors. For reasons made clear in my critical assessment of López's notion of a concept in Part III, I will pay attention to the first of these topics only. As López discussion is clear and convincing, I restrict myself to a few comments.

López unravels the implications of Mill's pictures of a society as a 'Social organism' a 'Social body' or 'Body politics' (*Contexts*, pp. 131 –135). Among other things, this suggests that a society might be healthy or ill, and, in the latter case, it needs treatment and medicine. And furthermore 'Politicians and in general those in charge of solving social and political problems, here compared with doctors, should master the principles and laws that govern society' (*Contexts*, p. 132). López draws out the many points, evidently intended by Mill, which can be made from this comparison with respect to the scientific status of sociology, the decisions of the politicians, as well as the layman's trust and evaluation of those in charge. However, the link (see the discussion of Chapter 3) connecting the science of society with art, is that ideally, the latter provides the major principle and the science the minor principle in the practical syllogisms. This passage makes clear the relationship between the social sciences and practical, or political decisions:

The relation in which rules of art stand to doctrines of science may be thus characterised. The art proposes to itself an end to be attained, defines the end and hands it over to the sciences. The sciences receives it, considers it as a phenomenon or effect to be studied, and having investigated its causes and conditions, send it back to art with a theorem of the combination of circumstances by which it could be produced [...] From these premises Art concludes to the performance of these actions as desirable, and finding it also practicable, converts the theorem into a rule or precept.¹⁸

In Part III, I discuss the lack of involvement with Mill's *Utilitarianism*. This lack is felt also in this context. López gives numerous references to Mill's use of 'social body' and 'body politics', including one from *Considerations on Representative Government* (*Contexts*, p. 132 (n 122)), but she does not mention that Mill invokes the image of a society as a body in *Utilitarianism* as well.¹⁹ In fact, in these two contexts, Mill makes the very same point about the progress of civilization, and thereby he points towards his underlying philosophy of history. As suggested, and argued further below, observations such as this one, ought to have an influence on our reading of *Utilitarianism*.

¹⁸ *CW*, 8, p. 944–945.

¹⁹ Robson, J. M. (ed.) *Collected Work of John Stuart Mill*, Volume 10, *Essays on Ethics, religion and Society* (Toronto: University of Toronto Press, 1969), p. 231. (Hereafter, this work is referred to as '*CW*, 10'.)

I would furthermore like to note that the author could have underlined stronger the fact that Mill's writing and thinking is deeply influenced by British naturalism and empiricism. A particularly illuminating and relevant example of the influence of this tradition on Mill's thinking can be found in the major work focused in *Contexts, A System of Logic*. Mill attempts at refining Hume's 'Laws of Association' by arguing that 'the laws of the phenomena of mind are sometimes analogous to mechanical [Hume's well-known account], but sometimes analogous to chemical laws. When many impressions or ideas are operating in the mind together, there sometimes takes place a process of a similar kind to chemical combinations'. In such cases the complex ideas 'result from' or are 'generated by' by the simple ideas, but do not 'consist of them'. This way of forming complex ideas, Mill labels, by a telling metaphor, 'mental chemistry'.²⁰ A discussion of these and other passages in Mill's corpus would have added strength to López's discussion of Mill's naturalism and the use of natural imaginaries in Mill's general philosophy.

In the eight Chapter, 'Mill's Concept of nationality: Enriching Contemporary Interpretations through Contextual History', the author turns to the concept of nationality. In light of the preceding chapters, laying out the all-significance of order and progress, she argues successfully that a prevalent view among contemporary liberal philosopher with a communitarian bent, such as Kymlika and Miller, is based on a misunderstanding Mill's reflections on the notion of nationality. Their appeal to Mill as a wise forerunner is unwarranted. By taking the wider context of the passages appealed to by these authors into consideration, the author reveals cohesion as the driving force; nationality is but instrumental for reaching order, which in turn is the essential prerequisite for progress. In accordance with the methodology behind *Contexts*, López establishes that Mill's reflections on nationality cannot be adequately grasped in isolation from his broader liberalism. In concordance with her interpretative, descriptive project, López avoids giving an assessment as to

²⁰ CW, 8, pp. 853–54.

whom is right on nationalism, Kymlicka and Miller, with their understanding of nationality as an inherent value, or Mill.²¹

III: Critical Discussion

Even though the author is inspired by, and has gained deep insights from the leading figures in the Study of intellectual thought, I have avoided detailed methodological reflections. This for three reasons. At first, I find her account of Mill and his contemporary intellectual climate to be of the greatest value independently of such reflections. Indirectly, through pointing out the value of her contextualization of Mill's work, I have paid tribute to the insights Lopez has obtained from this school. The second reason is somewhat critical. Even though the author refers to Conceptual history (*Contexts*, p. 13) and the Contextual history of concepts (*Contexts*, p. 160) as major sources of methodological inspiration, from time to time this reviewer has a hard time following her use of the notion of a 'concept'. I admit that I follow Skinner's usage of the term 'concept', when he, in discussing the all-encompassing phenomenon of conceptual change, states that:

My almost paradoxical contention is that the various transformation we can hope to chart will not strictly speaking be changes in concepts at all. They will be transformations in the applications of the terms by which our concepts are expressed.²²

López, however, appears to understand the notion of a concept differently, and that might be just a question of use. After all, since 'concept' is a quasi-technical term, variations of usage could cause nothing but questions of translation. However, López talks about the usage of concepts (*Contexts*, p. 62), the understanding of concepts (*Contexts*, p. 65), the wordings of concepts (*Contexts*, p. 67), the meanings of concepts (*Contexts*, p. 68), and she states that terms have 'conceptual vagueness and

²¹ Cf. note 6 above.

²² Skinner, Quentin, 'Retrospect: Studying rhetoric and conceptual change', *Visions of Politics*, Vol. 1 (Cambridge: Cambridge University Press, 2002), p. 179.

ambiguity' (*Contexts*, p. 103). She also maintains that 'Order and progress operates at both an abstract and concrete level [...]. Their meanings are not settled and open to interpretation, which accounts for their manifold usages' (*Contexts*, p. 107–108). I find this hard to grasp. From my perspective, we talk about the meanings of words or phrases; I would say that the meanings of 'order' and 'progress' are open to interpretation, and not the phenomena. On the other hand, also from my perspective, to say that words or phrases operate at different levels appears as a conflation. One possibility is that López talks about the *concepts* of order and progress, but then my problem is to understand a concept as something that needs interpretation. We interpret words or sentences, but not concepts, do we not? I must admit that I have not been able to figure out any consistent use of 'concept' (and related notions) from these and similar remarks; it seems to have a great, maybe too great, plasticity. As notions such as 'concept', 'polysemous concept' and 'conceptual change' play a dominant role in her methodological reflections, I am not sure that I have the required comprehension to provide an in-depth analysis of López treatment of this issue.

The third reason for not going into methodological reflections is that I find López's illuminating rendering of Mill's works to be based on sound principles that should not be too strongly associated with particular schools of interpretation. In my own main field of study, that of Frege and early analytic philosophy, we find exactly same division of scholars as in the study of Mill. Some scholars read selected passages or articles by Frege in isolation and connects them to particular contemporary debates, as if he is their forerunner, while others reads him contextually. This author has argued that Frege's writings should always be approach in light of his logicism, or more generally, the program of giving arithmetic a foundation, *and* in light of his general understanding of science. I have maintained that a number of contemporary analytic philosophers go wrong by not taking this framework seriously into consideration.²³ For this reason, I take particular delight in studying *Contexts*. It appears to me that López and I share the same general approach towards interpreting

²³ Cf. e.g. Alnes, Jan H. 'Frege's Unquestioned Starting Point: Logic as Science', Bengtsson, G., S. Säätelä and A. Pichler (eds.) *New Essays on Frege: Between Literature and Science* (New York: Springer, 2018), pp. 23–46.

the classics. We agree, for instance, on the interpretative principle that the fundamental notions used by an author should be spelled out in light of his broader philosophy, and not be taken for granted as having a neutral or trans-historical significance. By this, I do not overlook the basic fact that Mill is *both* a political actor and an intellectual author, and that this, as vindicated by *Contexts*, adds to the interpretative task.

As stated, the one thing that I miss in this book is an involvement with *Utilitarianism*. Surprisingly, López mentions this key-work in passing in the introduction only. As this booklet connects tightly to most of her discussions, I consider this a real loss. As a minor point, I have observed that Mill here talks about society as a body, and this is evidently connected to the subjects of Chapter 7. A more fundamental point is that in *A System of Logic*, Chapter 6, Mill points to *Utilitarianism* as justifying his teleological principle underlying *The Art of Life* (the field of imperatives or *ought* or *should be*, in opposition to the field of indicatives or *is*, or *will be*).²⁴ Accordingly, the author could have drawn important connections between *A System of Logic* and *Utilitarianism*. My major point, however, concerns the relationship between *Utilitarianism* and *On Liberty*. We have observed that López alludes to, but does not analyse this relationship. A treatment of this theme would have demonstrated the absurdness of Himmelfarb's claim that 'it was not [Mill's] intention here, in *On Liberty*, to rest his case on Utilitarian principles [...] his primary concern was to establish liberty, not utility, as the sole principle governing the relations of the individual and society'.²⁵ At first we note, and this connects to an observation made by López about *On Liberty*, that the presupposition of (a rather optimistic, we might say today) philosophy of history holds for *Utilitarianism* as well. Towards its end, Mill emphatically states that

The entire history of social improvement has been a series of transitions, by which custom or institution after another, from being a supposed primary necessity of social existence, has passed into the rank of a universal stigmatized injustice and tyranny. So it has been with the distinctions of

²⁴ *CW*, 8, p. 951.

²⁵ Himmelfarb, Gertrude, (ed.) *On Liberty* (Harmondsworth, Middlesex: Penguin, 1982), p. 30.

slaves and freeman, nobles and serfs, patricians and plebeians; and so it will be, and partly already is, with the aristocracies of colour, race, and sex.²⁶

By the way, this passage connects intimately also to another work treated by López, namely *Considerations of representative Government*. One of the advantages of the representative government—the best government, as it is well-fitted to preserve order while at the same time encouraging antagonism at different levels (ways of life, political debates) and thereby open up for progress—is that it contains, at its very core, principles for undermining ‘stigmatized injustice and tyranny’. Observe further that in *On Liberty*, we find this passage, openly contracting Himmelfarb’s reading:

It is proper to state that I forego any advantage which could be derived to my argument from the idea of abstract rights, as a thing independently of utility. I regard utility as the ultimate appeal on all ethical questions; but it must be utility in the largest sense, grounded on the permanent interests of man as a progressive being.²⁷

By reading *Utilitarianism* in light of this remark, based as it is on the notion of progress, it is clear that an ahistorical Benthamian approach towards of Mill’s utilitarianism involves a serious misapprehension. It is made clear in *Contexts* that Mill’s liberalism and political and social philosophy presuppose a philosophy of history, and moral philosophy is no exception. In fact, in *A System of Logic*, Mill maintains that ‘those who deduce political conclusions not from laws of nature, not from sequences of phenomena, real or imaginary, but from unbending practical maxims’ conflate science and art.²⁸ As cases, he mentions those who base their political philosophy on the idea of an abstract right and the construction of the social contract. Taken together, our observations should make it

²⁶ CW, 10, p. 259.

²⁷ Robson, J. M. (ed.) *Collected Works of John Stuart Mill*, Volume 18, *Essays on Politics and Society* (Toronto: University of Toronto Press, 1977), p. 224.

²⁸ CW, 8, p. 889.

clear that Mill does not simply add a qualitative dimension to classical hedonistic utilitarianism. Rather he formulates a moral theory that provides the foundations for *On Liberty*.

My criticism of ‘the two Mill’s’ gains some support from another author that López introduces, namely James Fitzjames Stephen — a champion of an ‘older English Liberalism’,²⁹ or in the vocabulary of *Contexts*, a defender of the position that ‘order has priority over progress and decline’. Although his *Liberty, Equality and Fraternity* (1879) contains severe criticisms of Mill, it does not question the dependency of Mill understanding of liberty on general utilitarian principles. It might well be that to Mill’s contemporary readers, supporters and critics alike, the present tendency of viewing *On Liberty* and *Utilitarianism* as the works of ‘the liberal Mill’ and the ‘utilitarian Mill’, respectively, would be met with raised eyebrows.³⁰

A significant outcome of *Contexts* is an insight into the complexity of Mill’s thinking, trespassing the boundaries of academic fields. His comprehensive liberalism is fleshed out by way political philosophy, philosophy of politics,³¹ philosophy of constitutional democracy, philosophy of economics and moral philosophy, and the methodology of the social sciences, and he always presupposes a philosophy of history. A major lesson to be derived from *Contexts*, is that we, in our contemporary world, must trespass these boundaries as well, otherwise we are unable to come to grip with it. A deep lesson from a work in the Study of intellectual thought.³²

Jan Harald Alnes, UiT The Arctic University of Norway.
e-mail: jan.harald.alnes@uit.no

²⁹ Cf. Stephen, James F. *Liberty, Equality, Fraternity*, Warner, Stuart D. (ed.) (Indianapolis: Liberty Fund, 1993), p. ix.

³⁰ The underlying dominating British empiricism – Stephen was a great admirer of Hobbes -- with its rejection of *a priori* and transcendental principles of reasoning might be relevant to this point, cf. the quote from *On Liberty* and *A System of Logic*, above.

³¹ This is Mill’s own label, cf. *Contexts*, p. 52.

³² I am grateful to Roar Anfinssen for valuable comments on earlier drafts of this essay.